

TENTATIVE RULINGS for LAW and MOTION

February 26, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Dela Cruz et al. v. Wright**
 Case No. CV-2024-0950

Hearing Date: **February 26, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Leani Dela Cruz, and the minor, Leah Dela Cruz, are **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **Surebuilt Construction, Inc. v. Thoele**
Case No. CV-2025-1723

Hearing Date: **February 26, 2026** **Department Eleven** **9:00 a.m.**

The Court, in its discretion, considers plaintiff Surebuilt Construction, Inc.’s untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Defendants Thoele and Katherine Marin’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants’ demurrer to complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) First, defendants have not established that plaintiff improperly served the mechanics lien. (Civ. Code, § 8416; Complaint, ¶ 3; Defendants’ RJN, Exhibit A & B.) Second, defendants have failed to show that, based on the complaint and matters judicially noticeable, the mechanic’s lien expired by operation of law before plaintiff initiated this action. (Civ. Code, § 8460; see *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605; Complaint, ¶¶ 6-7 & 17-24; Defendants’ RJN, Exhibit C.)

Defendants shall answer plaintiff’s complaint by no later than **March 6, 2026**. (Cal. Rules of Court, rule 3.1320(g), (j).)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.